

#	Case Name	Tentative
50	<i>Brown vs. Ditmer</i>	The unopposed motion by Prospective Intervenor Permanent General Assurance Corporation/The General Insurance Company (“Insurance Company”) for leave to intervene pursuant to Code of Civil Procedure section 387, subdivision (d) is CONTINUED. As an initial matter, Insurance Company’s proof of service did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) No opposition was filed. Plaintiff submitted a stipulation to advance the hearing on this motion and represented the motion was unopposed. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. Intervention is the procedure whereby a nonparty to an action may become a party by requesting leave of court to either join the plaintiff in claiming what is sought by the complaint or to unite with the defendant in resisting the plaintiff’s claims; or to demand anything adverse to both parties. (Code Civ. Proc. § 387, subd. (b).) Intervention is either permissive or mandatory. Mandatory intervention applies if: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person’s ability to protect